



Notification Waiver Determination

Apollo Funds – Nippon Sheet Glass

Acquisition	Lumina Japan Acquisition Co., Ltd (Lumina Japan), a special purpose vehicle of funds managed or advised by affiliates of Apollo Capital Management, L.P., applied for a notification waiver in respect of its proposed indirect acquisition of sole control of Nippon Sheet Glass Company, Limited (Nippon Sheet Glass), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 May 2026

Parties to the Acquisition	The acquirer, Lumina Japan, is a special purpose vehicle of funds managed or advised by affiliates of Apollo Capital Management, L.P., which is a wholly owned indirect subsidiary of Apollo Global Management, Inc. (together with its indirect subsidiaries, Apollo). For the purposes of this document, Apollo and the investment funds managed by Apollo's affiliates are referred to as the Apollo Funds. Apollo is a high-growth global alternative asset manager headquartered in New York City and incorporated in the US. It offers investment management and financial planning services to individuals and institutional investors on a global basis. Examples of Apollo's current investments include, inter alia, companies in education, insurance, financial services, and leisure businesses. The target, Nippon Sheet Glass, is a global manufacturer and supplier of a wide range of glass products, operating across three global business units: architectural glass, automotive glass, and creative technology glass (or technical glass).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap or vertical relationship between the Apollo Funds' controlled portfolio companies and Nippon Sheet Glass in Australia.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act